

The Claremont City Council held a meeting on Wednesday, October 28, 2020, in the Council Chambers of City Hall and via Zoom.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Mayor Lovett read the following statement: *This meeting is being conducted in accordance with the provisions of the Governor's Executive Order no. 2020-04 and the emergency meeting provisions of RSA 91-A to permit participation of board members by electronic means. Under the conditions of the current COVID-19 pandemic and the protocols established by the Centers for Disease Control (CDC), it is not reasonably practical for a quorum of this board's members to attend this meeting in person.*

To join the webinar:

<https://us02web.zoom.us/j/88238233399?pwd=NjNmZDZBEYi9XcmJNbXVWQ3ZkcUx6dz09>

Passcode: 376500

Or by telephone:

1-646-558-8656

Webinar ID: 882 3823 3399

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If there is a problem getting through to that number, please call 603-542-7002.

Members of the Council present, including location and who was in the room:

Ward I Councilor Andrew O'Hearne – Chambers, Councilors Sweetser and Stone; public

At-Large Councilor Abigail Kier – Home, son

At-Large Councilor Erica Sweetser – Chambers, Councilors Stone and O'Hearne; public

Assistant Mayor Allen Damren – Home, alone

Mayor Charlene Lovett – Home, alone

At-Large Councilor Debora Matteau – Home, alone

Ward II Councilor James Contois – Home, alone

Ward III Councilor Jonathan Stone – Chambers, Councilors O'Hearne and Sweetser; public

Absent:

At-Large Councilor Nicholas Koloski

Also present:

Edward Morris, City Manager

AGENDA CHANGES

None.

MAYOR'S NOTES

- October 25-31 is National Lead Poisoning Prevention Week. Sullivan County received \$1.7 million in HUD funding.
- November 3rd is Election Day
 - Special thanks to all election workers
- Next week is Fall Cleanup Week
- Veterans Day is November 11th; Council will meet on Thursday, November 12th
- American Legion will conduct a Veterans Day ceremony in Broad Street Park

CITY MANAGER'S REPORT

- **JSL Tax Assessment Concern** – Talked about concerns some people were having regarding the reduction in the tax assessment of the former JSL (Junior Sports League) building. In early July, he was informed of someone being interested in purchasing the JSL building, but there was some concern about the assessed value of the property. On July 3, 2020, he had a discussion with Bob McCarthy, the City's Contract Assessor, about this concern, and asked if he could review the assessment to make sure it accurately reflected the building's value, taking into account the current condition of the building. He added, that any citizen can contact the Assessing Department if they are concerned about the assessed value of a property, and the Assessing Department will review that assessment.

During the reassessment process, Mr. McCarthy found that the building has not been entered by an Assessor for the purposes of assessing the building from as far back as 1989 (and possibly before). He also found that it was classified in the Assessing system as a non-taxable school building. After his assessment, Mr. McCarthy concluded that the current value of the building equaled \$311,000 instead of the \$762,000 that was listed on the tax card. The assessment was completed and the tax card updated in early July. The property purchase proposal was presented to the City Council on August 12, 2020.

It is assumed that not much attention was given to this building by past Assessors, because this was a City-owned non-taxable structure. After realizing the tax discrepancy in this building, the City's Assessing Department will be reassessing all City-owned buildings and property this upcoming year to make sure all the assessments properly reflect the appropriate value.

- **Winter Parking Ban** - Reminder that per Claremont City Ordinance #247, a winter parking ban will be in effect from November 1, 2020 through April 15, 2021. No overnight parking will be allowed on City streets between midnight and 7:00 am.
- **Election** – Reminder that elections will be held on Tuesday, November 3, 2020. In preparation for the election, Central Collections will be closed on Monday, November

2nd, in order to start to process the absentee ballots received for this election. The Moderators will be in attendance, and this process is open to the public. The City Clerk's office will be open from 3-5 PM on Monday, November 2nd, for the collection and distribution of absentee ballots. Central Collections will be closed on Wednesday, November 4th, to finalize election results and complete processing of the election paperwork. Payments may still be made through the drop box outside Central Collections or on the City's website.

- **139/147 Main Street** – The shoring work at 147 Main Street is continuing. Once the shoring work is complete, demolition of 139 Main Street will commence. He will keep the City Council advised of the progress as this project goes forward.
- **Drought Update** – The rain we have had in recent weeks has increased our water levels in the City's Reservoirs. Although our water levels continue to rise, we still encourage citizens to conserve water as much as possible. If we continue to conserve water and receive some much-needed rain, the City may be able to finish the year without having to pump any water from the Sugar River.

The reservoir was down 14 feet, and is now back up to just 7 feet down. Hope for more rain.

- **Halloween Festivities** - Reminder that the City's normal Hallowesta activities have been cancelled, however there will be a drive-through Trick or Treating event on October 31st, in Monadnock Park from 3-6 PM. There will be decorated cars and goodies will be given out. The City's Parks and Recreation Department has also released Trick or Treating guidance to help people understand safety measures recommended by the State of NH and CDC to help keep people safe if they decide to participate in Trick or Treating this year. Please visit the City's Parks and Recreation web page to review the guidance.

Last week, Claremont Parks & Recreation put on a Spooky Ride in conjunction with Claremont Cycle Depot. 53 cyclists participated.

Fall Cleanup will be next week, November 2 through November 6. Public Works will make only one pass, so bags need to be put out by Monday.

- **COVID-19 Update** – As of the time this report was written, the State of New Hampshire is seeing an increase in positive COVID-19 cases. A majority of the cases are in the Southeastern portion of the State, but there has been an increase in numbers in the Upper Valley. Even with this increase, Sullivan County remains relatively low with 6 active cases of infection, and no reported cases in Claremont at this time. In order to maintain these low numbers, we must stay vigilant in our efforts to control the spread of the virus. If we continue to keep good hand hygiene and sanitization efforts, while maintaining social distancing, and wear masks when in public, we can continue to keep our numbers low and protect the health of the citizens of Claremont.

Reminder that Valley Regional Hospital is now a NHHHS testing site. Valley Regional Hospital asks that all people register for a testing time. For pre-registration or to make an appointment, please visit <https://www.vrh.org/covid-19-information/>. For additional questions, please call the COVID Hotline at 603-542-7850. Information is also available on the City's webpage and other media sites, with links to an online registration portal.

Last week Sullivan County had 4 cases and now has 10. Claremont did have 0 cases, but is now in the 1-4 range. Everyone needs to continue to be diligent.

There was a question about the lack of assessment for the JSL building. Stephan Hamilton, Interim Assessor, said it is not uncommon for Assessors to focus on taxable properties.

There was a discussion of the revaluation of the property. Mr. Hamilton said there were some errors in the description of this property that would affect the valuation. The responsible thing to do is to make sure the records match the value of the building.

There was a question about the Washington Street Optimization. Mr. Morris said the City has received a grant through the state to optimize the lights on Washington Street. Syncing the lights will help the traffic flow on Washington Street.

Regarding the Winter Parking Ban, Mr. Morris said the normal overnight parking places will still be available.

Regarding the Main Street Project traffic plan, the City is working with Pine Hill Construction. The plan will be posted. It is expected that the area will be closed for one day.

Mr. Morris said absentee ballots can be mailed in, or handed in at the City Clerk's office.

CITIZEN'S FORUM

Walt Stapleton, Ward 3 resident and House Representative for Ward 3, said that four Representatives have filed LSR (Legislative Service Request) 2021-0098 regarding the appointment of the Claremont Police Commission by the City Council instead of the City Manager. He talked about election signs of both parties being vandalized and/or taken. He reminded everyone that RSA 664 provides for up to a \$1,000 fine for each violation. He asked that whoever is doing this to stop and desist.

Ben Nelson, Sullivan County Commissioner, District 2, said that he is a candidate again. He has County-wide experience and would be proud to serve again. He publicly thanked the nursing home and jail staff for keeping COVID at bay. He gave a brief background of some of his accomplishments. He can be found on Facebook, Ben Nelson, County Commissioner.

OLD BUSINESS

Legislative Update

Mayor Lovett gave a Legislative Update.

1. SB599 – This bill will lower the EPA standard of 15 parts per billion (ppb). This measurement is not a health-based standard. The City of Claremont has supported this bill as it coincides with the city’s goal of “Operation Get the Lead Out.” Due to COVID-19 this bill did not make it through the last legislative session and will be introduced again in the upcoming legislative session.
2. Mayoral Roundtable – The mayors of the 13 NH cities have reinstituted the practice of meeting periodically to discuss issues that impact cities statewide. This will help our communities better advocate for solutions to these issues in the upcoming legislative session. At the most recent roundtable on October 13, the three concerns impacting all cities were the upcoming budget (state discussing 20% cuts), homelessness and affordable housing Goddard Block has recently opened 36 units. They are all filled and there is a waiting list.
3. Employer Contribution to the New Hampshire Retirement System – Legislative Service Requests (LSRs) have been introduced by incumbent legislators to reduce the municipalities’ share of the employer contribution. In the last legislative session, there was a bill to have the state provide 15% of the employer’s share, but that effort was not successful. This was supported by the City of Claremont and will be revisited in the upcoming session.
4. LSRs – To view a list of submitted LSRs by incumbent legislators, please visit the NH General Court website. The window for elected legislators to submit their LSRs begins on November 4.

Ordinance 579 Disabled Exemption – Second Reading – Public Hearing

The purpose of the first proposed change is to increase the qualification income(s) and asset holdings for those individuals seeking an exemption for a disabled person from real estate taxes from the City of Claremont.

The motivation behind this amendment is to simply account for inflation and maintain a more current set of qualifications for potential applicants.

The amendment also seeks to eliminate social security benefits from the exclusion of income in determining eligibility. This proposal is merely an attempt to correct the original language

which conflicted with RSA 72:37-b III in that such income from social security must be considered in calculating net annual income.

The only other proposed change is to move the exemption application deadline from March 1 to April 15.

This is housekeeping for an action that was approved by Council in October 2019.

Enactment of this Ordinance will amend the City of Claremont's Code as to Article II, Division 3 of Chapter 18. These changes are requested by the City Manager.

Mr. Morris said this is a housekeeping effort.

There were no questions from the Council.

A motion was made by Councilor Contois and seconded by Assistant Mayor Damren to adopt Ordinance 579 Disabled Exemption.

Councilor Contois read the ordinance into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0

Ordinance 580 Board of Assessors Membership – Second Reading – Public Hearing

The purpose of this proposed change is to prohibit a member of the Board of Assessors from serving concurrently on certain specified City boards and commissions.

Enactment of this Ordinance will revise Chapter 2, Administration, Article II, Section 2-126 by limiting members of the Board of Assessors from concurrent membership on certain City boards and commissions. This change was requested by the City Council.

A motion was made by Councilor Contois and seconded by Assistant Mayor Damren to adopt Ordinance 580 Board of Assessors Membership.

Councilor Contois read the ordinance into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0

Ordinance 581 Purchasing Policy – Second Reading – Public Hearing

The purpose of this proposed change is to increase the dollar limits applicable to the various levels of requirements for the City's purchasing regulations. The proposed change also separates out the intent and purpose provisions so that it is clear that these provisions apply to the entire Division 12.

Enactment of this Ordinance will update the dollar limits throughout the purchasing procedures and will clarify the purpose and intent of the Purchasing Procedures Division of the Code. This change was requested by the City Council Policy and Finance Committees.

Assistant Mayor Damren said the Finance Committee looked at the outdated dollar amounts.

A motion was made by Assistant Mayor Damren and seconded by Councilor Kier to adopt Ordinance 581 Purchasing Policy.

Assistant Mayor Damren read the ordinance into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0

Resolution 2021-19 Adoption of RSA 79-E, Community Revitalization Tax Relief, 31
Myrtle Street – Public Hearing

WHEREAS the City Council passed Resolution 2016-11 on July 22, 2015, adopting the provisions of RSA 79-E, Community Revitalization Tax Relief Incentive, as further amended by Resolution 2019-8 and as readopted by Resolution 2021-13; and

WHEREAS on September 18, 2020, the City received an application from Jonathan Nelson & Berkley Heath seeking property tax relief under the provisions of RSA 79-E as incentive for substantial rehabilitation for property located at 31 Myrtle Street (the “Property”); and

WHEREAS the Property is located within the City’s 79-E Incentive District; and

WHEREAS Jonathan Nelson & Berkley Heath plan to invest approximately \$70,916.00 to substantially rehabilitate the Property into 2-3 apartments; and

WHEREAS the City Council has determined that the application has met the requirements of RSA 79-E:14 and has determined that the construction cost for the proposed apartment building shall not result in the use of government grants and funds whereby such funds would total 50% or more of the project’s construction cost; and

WHEREAS the City Council finds that the application satisfies all applicable provisions of RSA 79-E and is eligible pursuant to RSA 79-E:5, I for a Community Tax Relief Incentive for a period up to five (5) years, beginning with the completion of the substantial rehabilitation of the Property, and further is eligible pursuant to RSA 79-E:5, III for an additional two (2) years of tax relief for substantial rehabilitation of a qualifying structure that is listed on or determined eligible for listing on the National Register of Historic Places, state register of historic places, or is located within and important to a locally designated historic district, that will be rehabilitated in accordance with the U.S. Secretary of Interior’s Standards for Rehabilitation.

NOW THEREFORE BE IT RESOLVED that the City Council hereby determines the proposed project has a public benefit in accordance with RSA 79-E:7, I, II, II-a, III, and IV; and

BE IT FURTHER RESOLVED the City Council herein approves the application for tax relief for a period of seven (7) years per RSA 79-E:5, I and III, commencing upon the completion of the substantial rehabilitation of the Property as evidenced by the issuance of a Certificate of Occupancy; and

BE IT FURTHER RESOLVED that the granting of this Community Tax Relief Incentive is subject to the granting by Jonathan Nelson & Berkley Heath of a covenant, acceptable to legal counsel, in accordance with RSA 79-E:8, ensuring that the property shall be maintained and used in a manner that furthers the public benefits for which the tax relief was granted and such other requirements as are set forth in Resolution 2021-13; and

BE IT FURTHER RESOLVED that if the covenant is terminated for any reason, the City shall assess all current and arrears taxes to the owner as though no tax relief was granted, with interest, in accordance with RSA Chapter 75; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. (*Majority Vote Required*)

Mr. Morris said this was brought to the Council at the last meeting.

Nancy Merrill, Planning and Development Director, said regarding whether or not this project will meet the threshold for 79-E. John Nelson, applicant, will submit to her a substantially updated rehabilitation sheet, breaking out the lead grant of \$25,511 and increasing the estimated project cost to \$70,916, which meets the threshold.

Mr. Nelson stated that there was some confusion. Councilor Sweetser thought the original number was just for lead abatement. The actual lead abatement number is significantly smaller than the rehabilitation number.

There was a brief discussion about the property being under a lead abatement order. Councilor Sweetser asked about the lead abatement and the assessed value reduction. Mr. Hamilton said there was a property revaluation in 2019 which may have affected it. The property has been vacant since December 2019. When the work is done, Mr. Nelson said the property will be owner occupied with other apartments.

A motion was made by Councilor Contois and seconded by Councilor Kier to adopt Resolution 2021-19 Adoption of RSA 79-E, Community Revitalization Tax Relief, 31 Myrtle Street.

Mr. Contois read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - no

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 7-1.

Holiday Display Policy

Section 1 – Purpose:

The City has an extensive and rich tradition of providing a holiday display on and around the Broad Street Park in an effort to encourage celebration of the season as well as to provide an aesthetically pleasing display for all residents and visitors to the City. This policy is intended to provide parameters and criteria in an effort to maintain this long-standing tradition as well as to establish a process of development for this display that shall respect the constitutional rights of all who experience this holiday event.

Section 2 – Objective:

From approximately the day after Thanksgiving until January 1st of every calendar year, the City will undertake the implementation of a holiday display at Broad Street Park which shall serve as the focal point of the City's efforts in adorning City-owned property during this season. The decoration of the park shall be in a fashion which overwhelmingly promotes and displays secular symbols that have traditionally become synonymous with the holiday season (for example, fir trees, lights, wreaths, presents, toy soldiers, Santa Claus, reindeer, etc.). The City Manager shall supervise and coordinate this display (or assign City staff to perform this function at the Manager's discretion) within the standards provided herein.

Councilor Stone said this is being brought to the Council for input. A Policy Committee meeting has been scheduled for tomorrow night, if needed to finalize this.

Rita Quintey, Ward 2, presented the Council with a petition with almost 300 signatures on it in favor of continuing the custom of displaying the lights and nativity scene in Broad Street Park. She approved of the proposed policy.

Monique Limoges asked clarifying questions. She said she was in favor of keeping the display as it has been.

A motion was made by Councilor Matteau and seconded by Assistant Mayor Damren to approve the policy on the holiday display.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Lovett - yes
Motion carried 8-0.

NEW BUSINESS

Whitewater Watershed Management Plan

Ms. Merrill said that this was former Public Works Director Victor St. Pierre's project.

Jennifer Palmiotto, Granite State Rural Water Association, showed a PowerPoint presentation, Whitewater Watershed Action Plan. The project purpose is to mark the 100th year anniversary, and looking toward safeguarding the future of the Whitewater Watershed. The goal is to identify potential water resources protection opportunities in the watershed.

Part of the plan was to create an Ad Hoc Committee of watershed stakeholders and develop an action plan with recommendations. Whitewater Watershed Advisory Committee: Victor St. Pierre, Claremont Public Works Director; Lionel Chute, Sullivan County Conservation District; Corey Fitch, Cornish Conservation Commission; Robert Lauricella, Utility Partners; Scott Magnuson, Claremont Conservation Commission; David Putnam, Claremont Planning Board; Eileen Skowronski, Claremont Conservation Committee; Steven Wilkie, Sullivan County ATV Club.

Whitewater is an exceptional drinking water resource. The City should determine the conservation status of City-owned properties and work to ensure their long-term protection. The reservoir provides 70% of the City's water. The City owns 15.5% in the watershed. The Cornish Master Plan supports protection of the Whitewater Watershed. 62% of the watershed is owned by private entities for recreational use. (Whitewater Watershed – Claremont: 172 acres, 6%; Cornish: 1803 acres, 67% and Croydon: 728 acres, 27%).

She discussed the potential sources of contamination and challenges. The Action Plan Highlights: Goals are to 1) Promote watershed management decision-making based upon sound scientific information. 2) Reduce potential pollution from nonpoint sources. 3) Ensure that the City of Claremont continues to have an adequate supply of clean, safe drinking water in the future. 4) Increase appreciation for the Whitewater Watershed and the Claremont Public Drinking Water Supply.

There was a discussion about the Forestry Management Plan and Ms. Merrill said based on the recommendations of this report, the City should probably mark those areas where no forestry should occur. She said the plan is to update the Forestry Management Plan; three City departments are working on this. It will go forward when the new Public Works Director comes on board.

Walt Stapleton, Ward 3, said he was happy to hear of the Watershed protection for the long term. He asked clarifying questions, and received answers about nonpoint risk/contaminations and logging.

A motion was made by Councilor Matteau and seconded by Councilor Stone to approve the Whitewater Watershed Action Plan.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0

Acceptance of Mask Donation from Claremont-Sugar River Rotary Club

Gary Merchant, Claremont-Sugar River Rotary Club member gave a brief overview of the distribution of masks throughout the state, including to the Claremont Fire Department.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau that the Claremont City Council hereby accepts with sincere appreciation a donation from Claremont-Sugar River Rotary of 2,500 masks, valued at \$3,000.00, for the Claremont Fire Department.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Sweetser asked Mr. Morris for a list of all properties that have applied for 79-E relief since the City adopted it.

Mayor Lovett said the Council will meet on November 4th for a Compensation Study Presentation and Implementation Plan.

Mayor Lovett said the Council will meet on Thursday, November 12, instead of the Wednesday.

Mayor Lovett said the NH Mayors are drafting a letter to the Governor to try to address homelessness; the state's plan was last done in 2006; 2014-2018 has seen an uptick in homelessness. Unless she hears anything different from the Council, she will continue moving in that direction. There was no objection from the Council.

Councilor Contois would like an update on the ACERT position in the Police Department.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 9:09 p.m., a motion was made by Councilor Kier and seconded by Councilor Matteau to adjourn.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council